

RE: Mandatory Invocation of Section 106 of the National Historic Preservation Act (NHPA) and Executive Order 13175 Regarding the Proposed Stratos Data Center and Associated 9-Gigawatt Energy Infrastructure, Box Elder County, Utah.

To Whom It May Concern,

I am writing as an affected 5th generation descendent of 7 of the founding families of Brigham City, Utah, and stakeholder regarding the proposed Stratos AI data center project spanning approximately 40,000 contiguous acres in the Hansel Valley region of Box Elder County, Utah. This massive project requires a direct infrastructure interconnection to the interstate Ruby Pipeline (under the jurisdiction of the Federal Energy Regulatory Commission) and a major New Source Review (NSR) Air Permit (under the jurisdiction of the U.S. Environmental Protection Agency) to burn natural gas for a massive, on-site 9-gigawatt power generation facility.

Pursuant to 36 CFR Part 800 (Section 106 of the National Historic Preservation Act), **I hereby demand** that the responsible federal agencies formally invoke the Section 106 review process immediately. The agencies cannot legally approve any technical permits, air quality modifications, or infrastructure taps for this project until this mandatory review is completed.

1. Establishment of a Clear Federal Nexus The Stratos project constitutes a federal undertaking under 36 CFR § 800.16(y) due to multiple required federal actions:

FERC Jurisdiction: The physical tap and delivery interconnect on the interstate Ruby Pipeline require federal regulatory approval.

EPA Jurisdiction: The immense carbon and particulate emissions from the proposed 9-GW gas plant require federal Title V / Clean Air Act approvals.

Department of Defense Land Nexus: The project boundaries intentionally encompass a parcel of the Utah Test and Training Range, a federal military asset.

2. Direct Threats to Culturally Significant, Historic, and Sacred Landscapes

The Area of Potential Effects (APE) for this 40,000-acre development sits within a highly sensitive regional landscape that is dense with irreplaceable historical, tribal, and archaeological assets. Physical grading, heavy construction, and long-term industrial operations directly threaten:

Shoshone Ancestral Heritage: The footprint is culturally continuous with the sacred ancestral lands of the Northwestern Band of the Shoshone Nation and the broader Bear River Massacre landscape, containing known and unmapped Native American artifacts.

Pioneer and Transit History: The project threatens the paths walked by early pioneers, including visible, un-excavated pioneer ruts and historical western migration trails.

Historical Gravesites and Cemeteries: The boundary encompasses or sits immediately adjacent to the historic Kelton Cemetery, the Kalpikoff Graves, and numerous vulnerable unmarked burial sites spanning centuries of local history.

Institutional and Wartime Landmarks: The region's history includes the legacy of the Intermountain Indian School and the Bushnell World War II-era hospital, sites of immense historical consequence to northern Utah that require rigorous protective buffers.

3. Severe Environmental Implications

Beyond cultural degradation, the scale of this project poses catastrophic environmental risks that require full federal environmental impact assessments:

Air Quality and Climate Footprint: Burning natural gas to generate 9 gigawatts of power will result in a projected 64% spike in Utah's entire carbon emissions, dumping massive particulate pollution directly over regional communities.

Hydrological Strain and Stormwater Runoff: Transforming 40,000 acres of open rangeland into an impervious concrete campus of data facilities will permanently alter natural drainage basins. This creates severe stormwater runoff, local stream erosion, and flooding risks.

Disaster Exacerbation and Ecological Threat: The increased runoff and water table degradation pose a direct threat to the fragile ecosystem of the nearby Great Salt Lake, potentially worsening toxic dust storms and regional environmental crises already managed under federal emergency frameworks.

4. Formal Requests and Demands

As a local stakeholder, I explicitly request the following actions from the reviewing federal agencies:

Immediate Invocation: Formally trigger the Section 106 process and coordinate with the Advisory Council on Historic Preservation (ACHP). **Mandatory Tribal Consultation:** Initiate formal, government-to-government consultation with the Northwestern Band of the Shoshone Nation under Executive Order 13175, independent of any state-level MIDA proceedings.

Granting of Consulting Party Status: I hereby request official Consulting Party Status under 36 CFR § 800.2(c)(5) as an interested citizen, and demand to be included in all future correspondence, public hearings, and reviews regarding the definition of the Area of Potential Effects (APE). No federal agency may legally bypass these requirements by deferring to Utah's Military Installation Development Authority (MIDA), as state-level zoning overrides do not exempt federal agencies from their statutory obligations under the National Historic Preservation Act.

In kind,

Dr. Elisa Nelson

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